

ELIZABETH II



1985 CHAPTER xx

An Act to incorporate the Royal Holloway and Bedford New College; to transfer to the Royal Holloway and Bedford New College all rights, properties, assets and liabilities of the Royal Holloway College and Bedford College and to dissolve those colleges; to enact provisions with regard to the Royal Holloway and Bedford New College; and for other purposes.

[16th July 1985]

WHEREAS the Royal Holloway College was founded and endowed by Thomas Holloway as a college for women and was opened by Her late Majesty Queen Victoria in 1886 and has been since 1900 a School of the University of London:

And whereas by the Royal Holloway College Act 1949 the 1949 c. xxx. said college was incorporated and the objects, general character, powers and methods of government of the said college were redefined:

And whereas by the Royal Holloway College Act 1962 1962 c. vii. further provisions were enacted with regard to the said college:

And whereas Bedford College was founded in 1849 as a college for women and has been since 1900 a School of the University of London:

And whereas the Chairman, Council and Governors of Bedford College, University of London were incorporated by the name and style of “the Chairman, Council, and Governors of Bedford College for Women” by a charter granted by His late Majesty King Edward the Seventh on 11th January 1909 and supplemental charters were subsequently granted to the College:

And whereas it is expedient that both the said colleges should be merged and that their rights, properties, assets and liabilities should be transferred to a college to be known as the Royal Holloway and Bedford New College, incorporated as in this Act provided:

And whereas it is expedient that the other provisions contained in this Act should be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen’s most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Citation. 1. This Act may be cited as the Royal Holloway and Bedford New College Act 1985.

Interpretation. 2. In this Act, unless the subject or context otherwise requires—

“the appointed day” means 1st August 1985 or such other date as may be appointed by order of the Secretary of State made on the application of the existing colleges;

“the charters” means the charter constituting Bedford College granted by His late Majesty King Edward the Seventh on 11th January 1909, the supplemental charter granted by His late Majesty King George the Fifth on 29th August 1911 and the supplemental charters granted by Her Majesty on 10th September 1957, 2nd August 1965 and 23rd July 1973;

“the College” means the Royal Holloway and Bedford New College incorporated by this Act;

“the Council” means the Council of the College constituted and appointed as provided by this Act;

“the existing colleges” means the Royal Holloway College and Bedford College;

“the regulations” means the regulations of the College for the time being in force by virtue of the provisions of this Act;

“special resolution” means a resolution passed at one meeting of not less than two-thirds of the members of the Council and confirmed at a subsequent such meeting held not less than one month nor more than three months after the former meeting where written notice of each meeting and of the purpose of the meeting has been notified to each member of the Council not less than fourteen clear days before the date fixed for the meeting and the resolution has been passed at each meeting by not less than two-thirds of those present and voting;

“the staff” means all paid employees of the College;

“the statutes” means the statutes of the College for the time being in force by virtue of the provisions of this Act;

“the University” means the University of London.

3.—(1) On the appointed day the existing colleges shall become one body, which shall be known as the Royal Holloway and Bedford New College and shall be a body corporate with perpetual succession and a common seal. Incorporation of College.

(2) The College shall consist of those persons who are for the time being members of the Council, the staff and students of the College and of such other persons as may be included by or under the provisions of this Act and of the statutes and regulations.

4.—(1) The objects of the College shall be to promote for the public benefit education and scholarship and, without prejudice to the generality of the foregoing, for that purpose to provide instruction leading to degrees of the University, to superintend postgraduate studies and to promote research. Objects of College.

(2) All the functions of the College shall be performed by or through the authorities of the College established by or under the provisions of this Act and the statutes, being the authorities to whose respective jurisdictions those functions are thereby assigned in manner therein provided.

(3) The College may employ and remunerate such staff as the Council may decide on such terms and conditions as the Council think fit subject, in so far as Appointed Teachers of the University are concerned, to the statutes and regulations of the University.

(4) The College may promote and maintain superannuation and pension schemes and may grant pensions and allowances or

pay compensation in lieu thereof to members and former members of the staff of the College or of the existing colleges and their respective dependants.

(5) Subject to consultation with the University, the College may enter into any agreement or arrangement on such terms and conditions as the Council thinks fit with any other college or any national or local authority, school, institution, association or other body whatsoever (whether incorporated or not) for co-operating with or assisting or being assisted by such body in any manner and for any purpose which is consistent with the objects of the College and approved by the Council.

(6) The College may do all such other things as are incidental or the Council may think conducive to the attainment of the objects of the College.

Visitor.

5. There shall be a Visitor of the College appointed by the Council for such period of office as the Council may determine.

Council.

6.—(1) There shall be a Council of the College which, subject to the provisions of this Act, shall be the governing and executive body of the College and shall exercise all the powers of the College save to the extent that this Act and the statutes otherwise provide.

(2) The Council shall conduct the general business of the College consistently with the provisions of this Act and the statutes and of the statutes and regulations of the University:

Provided that the Council shall not make any decision on any question of educational policy or make regulations on any matters having academic implications until the Academic Board has expressed an opinion on such questions or matters and until the Council has considered any opinion so expressed.

(3) There shall be elected from among the members of the Council a Chairman and a Vice-Chairman of the Council neither of whom shall be—

(a) in the employment of the College or of the University or of a School of the University; or

(b) a student of the College;

and the manner of election, period of office, powers and duties of each of them shall be as prescribed by the statutes and the regulations.

(4) Subject to the provisions of this Act, the constitution of the Council, its powers and duties, the manner of appointment or election to office of its members and the manner of filling vacancies in its membership shall be as prescribed by the statutes and regulations.

(5) Subject to the provisions of this Act, the Council may delegate or otherwise arrange for the discharge of any of its powers and duties as it may think fit.

7.—(1) Subject to the provisions of this Act, the Council may Statutes.
by special resolution make statutes for the administration of the property and revenues of the College and the conduct of the College's affairs and may in like manner amend or revoke any such statutes (including the first statutes of the College).

(2) The Council before making, amending or revoking a statute shall take such steps as are in its opinion best adapted for facilitating the making of representations to it with respect to the proposal by or on behalf of any bodies or persons appearing to it to be directly affected by the proposal and shall consider any representations made to it by or on behalf of any such bodies or persons. In particular no statute which affects academic policy or the remuneration and conditions of appointment of the academic teaching staff shall be made, amended or revoked until the Academic Board has been consulted.

(3) The Council before making, amending or revoking a statute shall consult the University.

(4) No statute made by the Council shall be repugnant to the statutes and regulations of the University.

(5) The making, amendment or revocation of statutes by the Council shall not be effective until confirmed by order of the Privy Council.

(6) The statutes set out in the Schedule to this Act shall be the first statutes of the College.

8. Subject to the provisions of this Act and the statutes, and Regulations.
to the provisions of the statutes and regulations of the University, the Council may make such regulations as it considers necessary or desirable for the purpose of carrying out the objects of the College or for the conduct of its meetings or affairs and for all other matters relating to the Council. Such regulations may amend or revoke regulations from time to time in force.

9. There shall be an Academic Board whose members shall Academic Board.
be as prescribed by the statutes and it shall, subject to the powers of the Council prescribed in this Act and the statutes, be the body responsible for the academic work of the College in teaching and examining and in research. It may also advise the Council on the general management of the College.

Transfer of
property to
College.

10.—(1) All property, real and personal, of every description (including things in action) and all rights and privileges of the existing colleges which immediately before the appointed day belonged to or were vested in or exercisable by the existing colleges shall on the appointed day, subject to the provisions of this Act, without any conveyance, transfer, assignment or other instrument, be transferred to and vested in, or be exercisable by, the College for all the estate and interest therein of the existing colleges.

(2) Any property or funds and any income from property or funds which immediately before the appointed day were held on behalf of the existing colleges for any special purpose shall after the appointed day be held by the College for such special purpose.

Transfer of
liabilities, etc.,
to College.

11. All debts and liabilities of the existing colleges shall on the appointed day be transferred and attached to the College and shall thereafter be discharged and satisfied by the College.

Savings for
agreements,
deeds, actions,
etc.

12. All agreements, appointments, awards, contracts, deeds and other instruments, and all actions and proceedings and causes of actions or proceedings, which immediately before the appointed day were existing or pending in favour of, or against, the existing colleges shall on and from the appointed day continue and may be carried into effect, enforced and prosecuted by, or in favour of, or against, the College to the same extent and in like manner as if the College instead of the existing colleges had been party to, or interested in, the same respectively.

Construction
of bequests in
favour of
existing
colleges.

13. Any scheme, will, deed or other instrument, whether made or executed before, on or after the appointed day, which contains any bequest, gift or trust or other benefit in favour of either of the existing colleges shall, on and after the appointed day, be read and have effect as if the College were named therein instead of that existing college.

Continuation
of
employment.

14.—(1) On the appointed day every member of the staff of each of the existing colleges shall by virtue of this Act become a member of the staff of the College and shall continue to enjoy terms and conditions of employment or engagement not less favourable than those enjoyed immediately prior to the appointed day.

(2) Employment of members of the staff to which subsection (1) above applies shall be deemed for all purposes to be a single continuing employment.

15. The College and any institution which is for the time being administered by or on behalf of the College, being an institution established for the general purposes of, or for any special purpose of, or in connection with, the College, shall be an exempt charity within the meaning, and for the purposes, of the Charities Act 1960.

College to be
exempt
charity.

1960 c. 58.

16.—(1) On the appointed day the existing colleges shall by virtue of this Act be dissolved and cease to exist.

Dissolution
of existing
colleges.

(2) Without prejudice to anything previously done or suffered, on the appointed day the charters shall be revoked and the Royal Holloway College Acts 1949 and 1962 shall be repealed.

17. The costs, charges and expenses of, and incidental to, the preparing for, obtaining and passing of this Act, or otherwise in relation thereto, shall be paid by the College out of the funds of the College.

Costs of
Act.

THE FIRST STATUTES OF THE COLLEGE

INTERPRETATION

1. In these statutes unless the context otherwise requires—
 - “the Academic Board” means the Academic Board established in accordance with statute 16;
 - “the academic staff” means all persons holding appointments of Professor, Reader, Senior Lecturer or Lecturer at the College or appointed to any other posts designated by the Council as posts on the academic staff of the College;
 - “the academic teaching staff” means all persons holding appointments of Professor, Reader, Senior Lecturer or Lecturer at the College;
 - “the Act” means the Royal Holloway and Bedford New College Act 1985;
 - “appointed members” means the members of the Council appointed in accordance with statute 3 (1) (b);
 - “elected members” means the members of the Council elected in accordance with statute 3 (1) (c) (i) and (ii);
 - “the Faculties” means the Faculties of the College established in accordance with statute 17;
 - “the Finance Committee” means the Committee appointed in accordance with statute 15;
 - “senior research staff” means members of the research staff of postdoctoral status or the equivalent and of three years’ standing or more at that level in the College or in a comparable institution;
 - “student members” means the President of the Students’ Union and the members of the Council elected in accordance with statute 3 (1) (c) (iii);
 - “the Students’ Union” means the Students’ Union established in accordance with statute 23.

COMMENCEMENT

2. This statute and statute 33 shall come into operation on the passing of this Act and the remainder of these statutes shall come into operation on the appointed day.

COUNCIL

- 3.—(1) The Council shall consist of forty members as follows:—
 (a) Ex officio members being—
 The Principal;
 The Vice-Principal (or, if there is more than one Vice-Principal, a Vice-Principal selected by the Council);
 Two Deans of the Faculties;
 The President of the Students' Union;

(b) Members appointed by the Council (who shall not be in the employ of the College nor students of the College) being—

- (i) one nominated by the Lord President of the Council;
- (ii) one nominated by the Secretary of State for Education and Science;
- (iii) two nominated by the Senate of the University;
- (iv) one nominated by the Inner London Education Authority;
- (v) one nominated by the Surrey County Council;
- (vi) one nominated by the Runnymede Borough Council;
- (vii) three nominated by such associations of former students of Royal Holloway College, Bedford College, and of the College as may from time to time be recognised by the Council as representative of the former students;
- (viii) thirteen other persons whose interests shall reflect the interests of the College. The procedures for selecting those persons shall be prescribed in the regulations;

(c) Elected members being—

(i) eight members of the full-time academic staff of the College of whom—

four shall be elected by the members of the Academic Board from among the members of the Academic Board who are members of the academic teaching staff;

two shall be elected from among their own number by the academic teaching staff;

two shall be elected from among their own number by the academic staff;

(ii) two shall be elected from among their own number by the full-time staff of the College who are not members of the academic staff;

(iii) two full-time students of the College elected by the whole student body.

(2) The Council shall make regulations for the election of members to the Council and in particular ensure that the student members and the members elected under statute 3 (1) (c) (ii) have been properly elected and are genuinely representative of the whole student body or of the full-time staff who are not members of the academic staff.

(3) Of the student members at least one shall be a postgraduate student and at least one shall be an undergraduate student.

OFFICERS OF THE COUNCIL

Chairman

4.—(1) The Chairman of the Council shall be elected by a majority of the other members present and voting at a meeting of which not less than fourteen days' notice has been given and at which not less than

two-thirds of the total membership of the Council are present and shall hold office for five years from the date of election and then retire but shall be eligible for re-election for one further period not exceeding five years.

Vice-Chairman

(2) A Vice-Chairman of the Council shall be elected by a majority of the other members present and voting at a meeting of which not less than fourteen days' notice has been given and shall hold office for such period as the Council thinks fit but for not more than five years from the date of election and then retire but shall be eligible for re-election for one further period not exceeding five years.

PERIOD OF OFFICE

5. Subject to the provisions of statute 33—

- (1) The appointed members of the Council shall hold office for five years from the date of their appointments and shall then retire but shall be eligible for re-appointment;
- (2) The members of the Council elected by the academic teaching staff, by the academic staff and by the full-time staff who are not members of the academic staff shall hold office for three years from 1st October in the year of their election and shall then retire but shall be eligible if otherwise qualified for re-election for one further period of three years after which they shall not be eligible for re-election until the lapse of one year after retirement;
- (3) The elected student members shall hold office from 1st August in the year of their election to 31st July in the following year and shall then retire.

FILLING OF VACANCIES

6. A casual vacancy in the members appointed by the Council shall be filled by the appointment by the Council, where appropriate on the nomination of the body or person concerned, of a new member and a casual vacancy among the elected members including elected student members shall be filled by the election of a new member by the body or persons concerned. The new member filling the casual vacancy shall hold office until the date on which the member vacating office would have retired and shall then retire but shall be eligible for re-appointment or re-election. In the case of an elected member the eligibility for re-election shall be as if the member elected to the casual vacancy had held office for three years.

VACATION OF OFFICE

7.—(1) Ex officio members of the Council shall vacate their office of councillor on ceasing to hold the relevant office.

(2) Members of the Council appointed in accordance with sub-paragraphs (vii) and (viii) of statute 3 (1) (b) shall vacate office if they cease to satisfy the conditions of those sub-paragraphs or of any regulation concerning their appointment.

(3) Members of the Council appointed in accordance with statute 3 (1) (b) shall vacate office if they are retained by the College as consultants for reward.

(4) Elected members including elected student members shall cease to be members of the Council if they cease to be eligible in the categories in which they were elected.

(5) Any member who is absent from five consecutive ordinary meetings shall cease to be a member unless the Council decides otherwise.

(6) The Council may require a member who is incapacitated by physical or mental illness from discharging the functions of a member of the Council to retire from membership.

(7) The Council may require any member who has a receiving order made against him or makes an arrangement or composition with his creditors or who is convicted on indictment of a criminal offence to retire from membership.

RESPONSIBILITY OF INDIVIDUALS

8. All members of the Council shall have equal status, rights, powers and duties and shall share collective responsibility for all the acts and decisions of the Council but subject to the limitation on the participation of student members specified in statute 27. All members shall speak and act in their own right contributing to the deliberations of the Council whatever special knowledge and advice they can, and exercising their own judgment to the best of their ability in the interests of and for the good of the College as a whole.

MEETINGS OF THE COUNCIL

9.—(1) The Council shall hold its ordinary meetings at such times and places as it shall determine but shall meet at least once in each term and once in the Summer Vacation.

(2) The Chairman may at any time and the Secretary shall at the written request of any six or more members summon a special meeting for any cause that seems to the Chairman or to the six or more members to be sufficient.

QUORUM OF THE COUNCIL

10. The quorum for a meeting of the Council shall be fifteen.

CHAIRING OF MEETINGS OF THE COUNCIL

11. At any meeting the Chairman shall preside. In the absence of the Chairman, the Vice-Chairman shall preside. In the absence of both the Chairman and the Vice-Chairman the members present and voting shall by resolution passed by a majority appoint one of their number as chairman of the meeting.

DECISION TAKING

12. The Council shall act by a resolution passed by a majority of the members present and voting at the meeting. Where the votes for and against a resolution are equal, the chairman of the meeting shall have a second or casting vote.

MINUTES

13. The Council shall keep written minutes of all resolutions and proceedings of Council and any committees appointed under statutes 14, 15 and 20. The minutes, if signed by the chairman of a succeeding meeting of the Council or committee, shall be prima facie evidence of the facts stated in them.

COMMITTEES OF THE COUNCIL

14.—(1) The Council may at any time appoint a Committee consisting either wholly of members of the Council or partly of members of the Council and partly of other persons to enquire into, report on or, with the delegated authority of the Council, take action over any matter within the Council's powers.

(2) The Council may also appoint Committees consisting of such persons as it thinks fit, whether members of the Council, staff or students of the College or not, for the purpose of considering and reporting on any subjects referred to such Committees by the Council.

(3) The Council may amend the membership and terms of reference of such committees and may dissolve them.

(4) In appointing a Committee, the Council shall indicate the quorum.

THE FINANCE COMMITTEE

15.—(1) The Council shall appoint from among its members a Finance Committee. The number and method of appointment of members shall be prescribed in the regulations save that the number of members appointed by the Council from among the appointed members of the Council shall not be less than three-fifths of the total membership of the Committee.

(2) The Finance Committee shall exercise a scrutiny of the College finances, control expenditure and advise the Council accordingly:

Provided that the Council may from time to time fix a sum above which (otherwise than in respect of ordinary periodical payments) no liability may be incurred or payment made except upon a resolution of the Council passed after receipt of a report from the Finance Committee.

(3) The Chairman of the Finance Committee shall be elected by the Council from among the members of the Council by a majority of those present and voting at a meeting of which not less than fourteen days' notice has been given and shall hold office for such period as the Council thinks fit within the limit of his term of office as a member of the Council. The Chairman of the Finance Committee shall not be in the employment of the College or of the University or of a School of the University nor be a student of the College.

THE ACADEMIC BOARD

16.—(1) The Academic Board shall be composed of—

(a) The Principal, who shall be Chairman;

(b) Ex officio members being—

The Vice-Principal or Vice-Principals;

The Deans of the Faculties;

The Librarian;

The Director of Computer Services;

(c) Representative members being—

The Heads of the Academic Departments or, should the Head of a Department be an ex officio member of the Academic Board, another representative of the Department appointed by the procedure prescribed in the regulations;

(d) Elected members being—

(i) the two members of the Council elected by the academic teaching staff in accordance with statute 3 (1) (c) (i);

(ii) members elected by the full-time academic teaching staff together with the full-time senior research staff from among their own number to a number which brings the total of elected and ex officio members equal to the total number of representative members, provided that not more than two of these members shall be senior research staff and that Professors, Readers and Senior Lecturers shall form the majority of the membership of the Academic Board;

(e) Student members being—

Two full-time students of the College elected by the whole student body.

(2) Subject to the provisions of statute 33—

(a) Except in the case mentioned in sub-paragraphs (b) and (c) below, elected members shall hold office for three years from 1st October in the year of their election but shall be eligible for re-election for one further period of three years after which they shall not be eligible for re-election until the lapse of one year after retirement;

(b) Members elected by the Board as members of the Council in accordance with statute 3 (1) (c) (i) shall remain elected members of the Academic Board for the duration of their period of office as members of the Council;

(c) Elected members of the Academic Board including student members shall cease to be members of the Board if they cease to be eligible in the categories in which they were elected.

(3) Student members shall hold office from 1st August in the year of their election to 31st July in the following year and shall then retire. A student member shall vacate office immediately on ceasing to be a student.

(4) Without prejudice to section 9 of the Act the functions of the Academic Board shall be—

- (a) to consider and, where appropriate, to advise the Council on applications through the Council to the University for appointments of Professors and Readers at the College and for conferments of title;
- (b) to nominate representatives to serve on Boards of Advisors constituted by the Senate of the University;
- (c) to consider and advise the Council upon the conditions and tenure of appointment of members of the academic teaching staff, subject, in the case of Appointed Teachers of the University, to the statutes and regulations of the University.

(5) Subject to the provisions of this statute, the regulations and any directions of the Council, the Academic Board may regulate its procedures and the conduct of its business and may with the Council's approval make standing orders for those purposes.

THE FACULTIES

17.—(1) There shall be such Faculties of the College as the Council after consultation with the Academic Board may from time to time determine, save that on the appointed day there shall be combined Faculties of Arts and Music and a Faculty of Science.

(2) Every Faculty or combination of Faculties shall consist of all full-time academic teaching staff in that University Faculty and of senior research staff and of such other members as the Faculty may from time to time determine.

(3) Every Faculty or combination of Faculties shall elect a Dean to act as Chairman at all meetings of the Faculty or combination of Faculties. Subject to the provisions of statute 33, the period of office of the Dean shall be as prescribed in the regulations.

(4) The Faculties meeting severally or jointly shall have power to advise the Academic Board on all academic matters and may advise on other matters relating to the general management of the College.

THE ACADEMIC DEPARTMENTS

18.—(1) There shall be such Academic Departments of the College as the Council after consultation with the Academic Board shall from time to time determine.

(2) The arrangements for the administration of Departments shall be as prescribed in the regulations.

THE PRINCIPAL

19.—(1) There shall be a Principal of the College appointed by the Council to hold office on such terms and conditions as the Council shall determine.

(2) The Principal shall be the chief academic and administrative officer of the College. The powers and duties of the office shall be as prescribed in these statutes and in the regulations and as shall be determined by the Council from time to time.

JURISDICTION OVER STUDENTS

20.—(1) The Principal shall be responsible for the acceptance or rejection of candidates for admission but may delegate responsibility in whole or in part. The Principal may refuse to admit any person without giving any reason.

(2) The Academic Board shall be the body empowered to terminate the membership of the College of any student on academic grounds, but for each student concerned there shall be a reasonable opportunity of being heard and a right of appeal in the manner prescribed by the regulations.

(3) (a) The Council shall appoint a Committee which shall be the body empowered to terminate the membership of the College of any student on other than academic grounds on the recommendation of the Principal, but for each student concerned there shall be a reasonable opportunity of being heard and a right of appeal in the manner prescribed by the regulations.

(b) The membership of the Committee shall be determined by the Council and prescribed by the regulations and shall include members elected by the Students' Union from among their own number, members of the academic teaching staff and appointed members of the Council.

THE VICE-PRINCIPALS

21. There shall be a Vice-Principal or Vice-Principals of the College drawn from among the academic teaching staff and appointed by the Council to hold office on such terms and conditions as the Council shall determine.

THE SECRETARY

22. There shall be a Secretary of the Council appointed by the Council to hold office on such terms and conditions as the Council shall determine.

THE STUDENTS' UNION

23.—(1) There shall be a Students' Union of the College for the benefit of the students of the College.

(2) The functions of the Students' Union shall be as follows—

(a) to promote co-operation among members for educational, cultural, social and sporting purposes;

(b) to cater for the welfare of its members and to represent them in all matters affecting their interests.

(3) The Students' Union shall conduct and manage its own affairs in accordance with a constitution approved by the Council.

HONORARY FELLOWS

24.—(1) The Council shall have power to appoint as Honorary Fellows of the College former students of the College or of Royal Holloway College or Bedford College and former members of the staff of the College or of Royal Holloway College or Bedford College who

have attained distinction in academic or public life and other eminent persons who have rendered signal service to the College or to Royal Holloway College or Bedford College or the cause of education generally.

(2) The maximum number of Honorary Fellows who may be appointed and the method of appointment shall be prescribed in the regulations.

(3) An Honorary Fellowship may be resigned by informing the Secretary of the Council in writing.

(4) On the appointed day Fellows of Bedford College and Honorary Fellows of Royal Holloway College shall become Honorary Fellows of the College.

REMOVAL OF MEMBERS OF THE ACADEMIC TEACHING STAFF

25.—(1) Subject to the statutes and regulations of the University concerning the removal from office of Professors and Readers and to the provisions of section 14 of the Act, the Council may remove from office any member of the academic teaching staff and may recommend to the University the removal of a Professor or Reader or the withdrawal of his title—

- (a) for good cause;
- (b) because of ill-health or infirmity.

(2) The expression “good cause” means—

- (a) conviction of any offence which the Council considers to be such as to render the person concerned unfit to continue to hold his post;
- (b) conduct of a scandalous or disgraceful nature which the Council considers to be such as to render the person concerned unfit to continue to hold his post;
- (c) conduct which the Council considers to be such as to constitute continued failure or inability of the person concerned to perform the duties of his post or to comply with his conditions of service.

(3) The Council may make and from time to time vary, add to or revoke regulations establishing procedures for the removal from office of any member of the academic teaching staff upon the grounds set out in paragraph (1) of this statute and for appeal against such removal and such regulations shall—

- (a) make such provision as the Council shall from time to time deem appropriate for different categories of appointment including (without prejudice to the generality of the foregoing) appointments for a fixed term or subject to a probationary period; and
- (b) be designed to secure that the individual concerned (who may be represented) shall be given a full and fair opportunity of being heard.

(4) No member of the academic teaching staff shall be removed from office except on the grounds set out in paragraph (1) of this statute and unless the procedure specified in the regulations made in accordance with paragraph (3) has been followed.

NO DISCRIMINATION

26. No discrimination on account of religion, race, sex or politics shall be shown against any person in determining whether he or she is to be admitted as a member of the College, or to hold any advantage or privileges thereof.

RESERVED AREAS OF BUSINESS

27. Student members of the Council and of the Academic Board and of the Committees of either or of such Committees and other bodies as the Council may from time to time determine shall not be entitled to participate in the consideration of reserved areas of business. Reserved areas of business shall be appointments, re-appointments, promotions and any other matters affecting individual members of the staff, admission, re-admission and academic assessment of students, the appointment of examiners, the conduct of examinations, the approval of individual courses of study, the award of scholarships and prizes and the approval of individual research projects and grants for travel. Papers for consideration at meetings of any such bodies and minutes and other records relating to such matters shall not at any time be available to a student member. The Chairman of the meeting shall decide in any case of doubt whether a matter is one to which this statute applies and his decision shall be final.

ESTIMATES AND ACCOUNTS AND AUDITOR

28.—(1) The Council shall before the beginning of each financial year of the College arrange for the preparation of an estimate of income and expenditure for the year and shall ensure that accounts of all income, receipts, expenditure and payments and of all assets and liabilities of the College are kept and that an annual statement of the College's accounts is prepared and published.

(2) There shall be an audit of the College's accounts with a report on its financial position made every year and published by the Council.

(3) The Auditor shall be appointed by the Council and shall be a member of one or more of the following bodies:—

The Institute of Chartered Accountants in England and Wales;

The Institute of Chartered Accountants of Scotland;

The Chartered Association of Certified Accountants;

The Institute of Chartered Accountants in Ireland;

Any other body of accountants established in the United Kingdom and for the time being recognised for the purposes of section 389 (1) (a) of the Companies Act 1985 by the Secretary of State;

but a Scottish firm may be so appointed if each of the partners is qualified to be so appointed. No person shall be appointed or remain Auditor who is or any one of whose partners is a member of the Council or of the staff of the College.

INVESTMENTS

29.—(1) Moneys in the hands of the College and available for investment may be invested by the College in any of the following modes or objects of investment:—

- (a) by placing them on deposit with any bank or licensed deposit taker;
- (b) by investing them in such stocks, funds, fully paid shares, securities and other investments (including land of any tenure or any interest therein) within the United Kingdom or elsewhere whether producing income or not and without the need for diversification, as the Council shall, in its absolute discretion, think fit:

Provided that, in the case of moneys held by the College as trustees, the powers conferred by this statute shall be exercised subject to the provisions of the law relating to investment by trustees.

(2) The Council shall have power at any time and from time to time by writing to appoint (and in like manner to revoke or to vary the terms of any such appointment) any person or persons including a company or firm to act as investment advisers or investment managers and to permit any moneys, investments or other property belonging to or in the hands of the College to be registered or held in the name or names of any nominee or nominees within the United Kingdom on behalf of the College without being liable for any loss occasioned thereby in each case subject to such conditions and upon such terms (including the payment of remuneration) as shall from time to time be agreed in writing between the Council and such person or persons as aforesaid.

RAISING OF MONEY

30. Where the College is authorised to apply money for any purpose or in any manner it shall, subject to the statutes and regulations of the University or to any trust deed, have power to raise the same or any part thereof by borrowing it or by selling, converting, calling in, mortgaging or otherwise charging all or any part of the property of the College:

Provided that no lender nor any purchaser or mortgagee paying or advancing money on a sale, conversion, calling in, mortgage or charge shall be concerned to see that such money is wanted or that no more than is wanted is raised or otherwise as to the application thereof.

THE SEAL

31. The Council shall have the custody and sole use of the Common Seal of the College and arrangements for its safe keeping and manner of authentication shall be as prescribed by the regulations.

GENERAL SAVING

32.—(1) All acts done by any meeting of the Council or a Committee appointed by the Council in accordance with statutes 14, 15 and 20 or by any meeting of the Academic Board or of a Committee appointed by the Board, or by any person acting in the name and with the authority of the Council, Board or Committee shall, even though it is afterwards discovered that there was some defect or irregularity in the appointment of the Council, Board, Committee or person, or that they or any of them were disqualified, be as valid as if the Council, Board, Committee or person had been duly appointed or qualified.

(2) No act, proceeding or resolution of the Council or of any Committee appointed by the Council under the provisions of statutes 14, 15 and 20 or of the Academic Board shall be invalidated or questioned by reason of the existence of any vacancy in its membership or the disqualification or any irregularity in the appointment of any member or by reason of the accidental omission to give any member notice of the meeting or of the non-receipt by any member of that notice.

TRANSITIONAL PROVISIONS
Appointment of Personnel

33.—(1) (a) Notwithstanding the provisions of section 5 of the Act and statutes 19 and 21, the two bodies then known respectively as the Council of Bedford College and the Council of Royal Holloway College (hereinafter referred to as "the Councils") shall, before the appointed day, appoint by their joint resolution the first Visitor, the first Principal and the first Vice-Principal or Vice-Principals of the College.

(b) Before the appointed day, the Councils by their joint resolution shall also appoint the first Heads of the Academic Departments of the College, the first College Librarian and the first Director of Computer Services of the College.

(2) Notwithstanding the provisions of statute 22, the first Secretary of the Council of the College shall be Mr. Richard Hardy (hereinafter referred to as "the Secretary designate").

(3) The Councils shall determine the terms of office and, where appropriate, the conditions of service and remuneration of the persons appointed under paragraphs (1) and (2) of this statute and the persons so appointed shall take office on the appointed day.

*Elections of Deans of Faculties and the President of the
Students' Union*

(4) Notwithstanding the provisions of statute 17 (3), the Secretary designate shall prior to the appointed day arrange—

(a) a postal ballot of the members of the bodies then known as the Faculty of Arts of Bedford College and the Faculties of Arts and Music of Royal Holloway College to elect the first Dean of the Faculties of Arts and Music of the College;

- (b) a postal ballot of the members of the bodies then known as the Faculty of Science of Bedford College and the Faculty of Science of Royal Holloway College to elect the first Dean of the Faculty of Science of the College.

The Deans of the Faculties so elected shall take office on the appointed day. Their terms of office shall be determined by their respective electing bodies. The Secretary designate shall act as returning officer for the ballots.

(5) Prior to the appointed day the bodies then known as the Bedford College Union Society and the Royal Holloway College Students' Union Society shall arrange a ballot of the students of the existing colleges to elect the first President of the Students' Union of the College. The person so elected shall take office on the appointed day.

Appointments and Elections of Members of the Council

(6) Notwithstanding the provisions of statutes 3 (1) (b) (i) to 3 (1) (b) (vi), prior to the appointed day the Secretary designate shall request nominations from the Lord President of the Council, the Secretary of State for Education and Science, the Senate of the University, the Inner London Education Authority, the Surrey County Council and the Runnymede Borough Council and the persons so nominated shall, from the appointed day, be deemed appointed by the Council under statute 3 (1) (b).

(7) Notwithstanding statute 3 (1) (b) (vii), prior to the appointed day the Secretary designate shall request the Bedford College Association and the Royal Holloway College Association/Royal Holloway Ex Students' Union Society, being associations of the former students of the existing colleges, jointly to nominate three persons to serve on the Council under statute 3 (1) (b) (vii). The persons so nominated shall from the appointed day be deemed appointed by the Council under statute 3 (1) (b).

(8) Notwithstanding the provisions of statute 3 (1) (b) (viii) the Councils shall prior to the appointed day appoint a committee from their members to make recommendations of persons to serve on the Council under statute 3 (1) (b) (viii) and having considered any recommendations of that committee the Councils shall by their joint resolution appoint thirteen persons to serve on the Council under statute 3 (1) (b) (viii). The persons so appointed shall, from the appointed day, be deemed appointed by the Council under statute 3 (1) (b).

(9) (a) Notwithstanding the provisions of statute 3 (1) (c) (i), before the appointed day—

- (i) the academic teaching staff of the existing colleges shall elect two from their number to serve on the Council under statute 3 (1) (c) (i);
- (ii) the academic staff of the existing colleges shall elect two from their number to serve on the Council under statute 3 (1) (c) (i).

(b) Notwithstanding the provisions of statute 3 (1) (c) (ii), before the appointed day the full-time staff of the existing colleges who are not members of the academic staff of the existing colleges shall elect two from their number to serve on the Council under statute 3 (1) (c) (ii).

(c) The Secretary designate shall act as returning officer for the ballots held under paragraphs (a) and (b) above which shall be conducted by post and the persons so elected shall be deemed elected to the Council from the appointed day under statute 3 (1) (c).

(10) Notwithstanding the provisions of statute 3 (1) (c) (iii), before the appointed day the bodies then known respectively as the Bedford College Union Society and the Royal Holloway College Students' Union Society shall arrange a ballot of the students of the existing colleges to elect two students to serve on the Council under statute 3 (1) (c) (iii). The students so elected shall be deemed elected to the Council from the appointed day under statute 3 (1) (c) (iii).

(11) Notwithstanding statute 3 (1) (c) (i), before the appointed day the Secretary designate shall conduct a postal ballot of the Principal and the Vice-Principal or Vice-Principals appointed under paragraph (1) (a) of this statute, the Heads of the Academic Departments or representatives of the Academic Departments to be appointed under regulations made for the purpose of this statute, the Librarian and the Director of Computer Services appointed under paragraph (1) (b) of this statute, the Deans of Faculties elected under paragraph (4) of this statute, the two members of the Council elected under paragraph (9) (a) of this statute, and the members of the Academic Board elected under paragraphs (14) and (15) of this statute, to elect four members of the academic teaching staff from their number to serve on the Council under statute 3 (1) (c) (i). The persons so elected shall be deemed elected to the Council from the appointed day under statute 3 (1) (c) (i).

(12) The persons appointed and elected under paragraphs (1) to (11) of this statute shall constitute the first Council of the College. The Council as so constituted shall have power to act notwithstanding any casual vacancy arising from death, disqualification or resignation among the persons appointed and elected under paragraphs (1) to (11) of this statute or from the failure of any person or bodies to nominate persons for appointment under paragraphs (6) and (7) of this statute.

First Chairman of the Council

(13) (a) Prior to the appointed day the Councils shall each appoint seventeen persons from their members for the purpose of electing the first Chairman of the Council. The Secretary designate shall, before the appointed day, summon a meeting of the thirty-four persons so appointed. At least fourteen days' written notice of the meeting shall be given. Notwithstanding the provisions of section 6 (3) of the Act and the provisions of statute 4 (1), the first Chairman of the Council shall be elected from the persons appointed to the Council under paragraphs (6), (7) and (8) of this statute by a majority of those present and voting at the meeting.

(b) The first Chairman of the Council shall take office on the appointed day. Within a period of nine months from the appointed day an election of a Chairman of the Council shall be held in accordance with statute 4 (1) and, if not re-elected, the first Chairman of the Council shall then stand down.

Elections to the Academic Board

(14) Notwithstanding the provisions of statute 16 (1) (d), before the appointed day the Secretary designate shall conduct a postal ballot of the full time academic teaching staff together with the full time senior research staff of the existing colleges to elect from their number persons to serve on the Academic Board under statute 16 (1) (d). The number of persons so elected shall, together with the ex officio members of the Board and the two members of the Board who are also members of the Council under statute 3 (1) (c) (i), equal the number of representative members of the Board. No more than two of the persons elected under this paragraph shall be senior research staff and the arrangements for the elections shall be such as to ensure that Professors, Readers and Senior Lecturers constitute the majority of the membership of the Board. The Secretary designate shall act as returning officer for the ballots held under this paragraph. The persons elected in the ballots shall be deemed elected to the Academic Board from the appointed day.

(15) Notwithstanding the provisions of statute 16 (1) (e), prior to the appointed day the bodies then known respectively as the Bedford College Union Society and the Royal Holloway College Students' Union Society shall arrange a ballot of the students of the existing colleges to elect two students to serve on the Academic Board under statute 16 (1) (e). The students so elected shall be deemed elected to the Academic Board from the appointed day.

Retirement of Persons First Appointed or Elected to the Council

(16) Notwithstanding the provisions of statute 5—

- (a) three of the seven persons first appointed under this statute to serve on the Council under statutes 3 (1) (b) (i) to 3 (1) (b) (vi) shall retire after three years from 31st July of the year of their appointment. The remainder shall retire after five years from 31st July of the year of their appointment in accordance with statute 5 (1);
- (b) the three persons first appointed under this statute to serve on the Council under statute 3 (1) (b) (vii) shall retire after one year from 31st July of the year of their appointment;
- (c) of the thirteen persons first appointed under this statute to serve on the Council under statute 3 (1) (b) (viii):
 - (i) four shall retire after two years from 31st July of the year of their appointment;
 - (ii) four shall retire after four years from 31st July of the year of their appointment;
 - (iii) the remainder shall serve for five years from 31st July of the year of their appointment;

(d) of the ten persons first elected under this statute to serve on the Council under statutes 3 (1) (c) (i) and 3 (1) (c) (ii) five shall retire after two years from 30th September of the year of their election of whom:

(i) two shall be from the four persons elected under paragraph (11) of this statute;

(ii) one shall be from the two persons elected under paragraph (9) (a) (i) of this statute;

(iii) one shall be from the two persons elected under paragraph (9) (a) (ii) of this statute;

(iv) one shall be from the two persons elected under paragraph (9) (b) of this statute; and
the remainder shall serve for three years from 30th September of the year of their election.

Retirement of Persons First Elected to the Academic Board

(17) Notwithstanding the provisions of statute 16 (2), of the persons first elected to the Academic Board under paragraph (14) of this statute—

(a) one-third (calculated by dividing three into the total number of persons elected to the Academic Board and disregarding any fractional remainder) shall retire after one year from 30th September of the year of their election;

(b) one-third (calculated in like manner) shall retire after two years from 30th September of the year of their election.

The remainder shall serve for three years from 30th September of the year of their election.

(18) In the event of a casual vacancy arising through death, disqualification or resignation among the persons first elected or appointed to the Council or the Academic Board, the person elected or appointed to fill the vacancy shall serve for the remainder of the term of office which would have been served by the person causing the vacancy.

(19) When retirements are to take place from a given category of member of the Council or the Academic Board under the provisions of this statute, the persons from that category who shall retire shall be determined by lot.

(20) Notwithstanding the provisions of statutes 5 (2) and 16 (2), any period of service on the Council or the Academic Board served by the persons first elected to the Council and the Academic Board shall be disregarded in determining whether they are eligible for re-election.

(21) Notwithstanding statute 3 (2), the Councils may by their joint resolution make such regulations as they consider necessary or desirable for the making of appointments and for the conduct of elections under this statute.

(22) If any questions arise in determining the initial membership of any body constituted under the statutes or otherwise in respect of initial procedure under the provisions of this statute, the Secretary designate shall refer the question to the Visitor or, if the Visitor has not yet been appointed, to the Chairman of the Court of the University who may either decide the question himself or appoint some other person to do so. The decision of the Visitor, the Chairman of the Court or other person appointed by the Chairman of the Court to act on his behalf shall be final.

PRINTED IN ENGLAND BY OYEZ PRESS LIMITED
FOR W. J. SHARP

Controller and Chief Executive of Her Majesty's Stationery Office and
Queen's Printer of Acts of Parliament

LONDON: PUBLISHED BY HER MAJESTY'S STATIONERY OFFICE

£3.30 net

ISBN 0 10 512085 5



Royal Holloway and Bedford New College Act 1985

CHAPTER xx

ARRANGEMENT OF SECTIONS

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